

consideration of their not requiring the said works to be made :

- (b) save as hereinafter, in this chapter, provided, no railway administration shall be liable to execute any further or additional accommodation works for the use of the owners or occupiers of the lands after the expiration of ten years from the date on which the railway passing through the lands was first opened for public traffic ;
 - (c) where a railway administration has provided suitable accommodation work for the crossing of a road or stream and the road or stream is afterwards diverted by the act or neglect of the person having the control thereof, the railway administration shall not be compelled to provide any other accommodation work for the crossing of such road or stream.
- (3) The State Government may specify a date for the commencement of any work to be executed under sub-section (1) and, if within three months next after that date, the railway administration fails to commence the work or having commenced it, fails to proceed diligently to execute it, the Central Government shall, on such failure being brought to its notice by the State Government, issue such directions to the railway administration as it thinks fit.

Explanation : For the purposes of this section, the expression “lands” shall include public roads.

Comments

Section 16 provides for the nature of accommodation works and the circumstances in which such accommodation works may be carried out by a railway administration.

Proviso. – it is a well settled principle of construction that unless clearly indicated, a proviso would not take away substantive rights given by the section or sub-section.

17. Power of owner, occupier, State Government or local authority to cause additional accommodation works to be made – (1) if an owner or occupier of any land affected by a railway considers the works made under sec.16 to be insufficient for the use of the land, or if the State Government or a local authority desires to construct a public road or other work across, under or over a railway, such owner or occupier, or, as the case may be, the State Government or the local authority may, at the time, require the railway

administration to make at the expense of the owner or occupier or of the state Government or the local authority, as the case may be, such further accommodation works as are considered necessary and are to be by the railway administration.

(2) The accommodation works made under sub-section (1) shall be maintained at the cost of the owner or occupier of the land, the State Government or the local authority, at whose request the works were made.

(3) In the case of any difference of opinion between the railway administration and the owner or occupier, the State Government or the local authority, as the case may be, in relation to -

- i) the necessity of such further accommodation works
- ; or
- ii) the expenses to be incurred on the construction of such further accommodation works ; or
- iii) the quantum of expenses on the maintenance of such further accommodation works,

it shall be referred to the Central Government whose decision thereon shall be final.

Comments

Section 17, sub-section (1) provides that an owner or occupier of any land or the State Government or a local authority desiring any additional accommodation work may require the railway administration to carry out such work at the cost of such owner, occupier, the state Government or the local authority.

Sub-section (2) provides that the works carried on under sub-section (1) shall be maintained at the cost of the owner, occupier, the State Government or the local authority at whose request the works were done.

Sub-clause (3) lays down that in case of any difference between the railway administration and the owner, occupier or the State Government or the local authority, in relation to the necessity of or expenses incurred on the construction of accommodation works, the same shall be referred to the Central Government whose decision thereon shall be final.

18. Fences, gates and bars – The Central Government may, within such time as may be specified by it or within such further time, as it may grant, require that –